

COMPLETE CIVIL LITIGATION TIMELINE FLOWCHART

Based on Civ Pro II Outline – Prof. Genetin

VERSION 2 – EXPANDED

PHASE 0: PRE-FILING

Informal Investigation

(Rule 11 requires reasonable inquiry BEFORE filing)

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- Interview client, gather facts
- Research the law
- Consult experts if needed
- Cannot contact represented parties (Rule 4.2)
- Must identify yourself to unrepresented parties

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CHOOSE THE RIGHT COURT – Jurisdiction & Venue

SUBJECT MATTER JURISDICTION (can court hear this?):

28 U.S.C. § 1331 – Federal Question Jurisdiction

- Claim arises under federal law, Constitution, or treaties
- "Well-pleaded complaint rule" – federal question must appear in plaintiff's complaint

28 U.S.C. § 1332 – Diversity Jurisdiction

- Complete diversity: no plaintiff from same state as any defendant
- Amount in controversy exceeds \$75,000
- Erie Railroad v. Tompkins: federal courts sitting in diversity apply STATE substantive law (not federal common law)

28 U.S.C. § 1367 – Supplemental Jurisdiction

- Federal court can hear state claims that share a "common nucleus of operative fact" with the federal claim
- Court has discretion to decline if state claims predominate

46 PERSONAL JURISDICTION (power over this defendant?):
47 International Shoe v. Washington:
48 → Defendant must have "minimum contacts" with
49 the forum state such that maintenance of suit
50 does not offend "traditional notions of fair
51 play and substantial justice"

52
53 World-Wide Volkswagen v. Woodson:
54 → PURPOSEFUL AVAILMENT required – defendant
55 must have deliberately reached into the forum
56 → Foreseeability alone is not enough
57 → Unilateral act of plaintiff cannot establish
58 jurisdiction

59
60 Types of personal jurisdiction:
61 → General: defendant "at home" in forum (domicile
62 for individuals; principal place of business
63 or incorporation for corporations)
64 → Specific: claim arises out of defendant's
65 contacts with the forum

66
67 VENUE – 28 U.S.C. § 1391:
68 Proper venue in district where:
69 (1) Any defendant resides (if all defendants
70 reside in same state)
71 (2) Substantial part of events/omissions
72 giving rise to claim occurred
73 (3) Any defendant subject to personal
74 jurisdiction (if no other district works)
75 |
76 ▼

77 Determine proper court (federal vs. state)
78 Obtain local rules (e.g., N.D. Ohio)
79 |
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81 ↓ Ready to file?

82
83
84

85
86 PHASE 0.5: FILING & SERVICE
87

88
89 RULE 3 – COMMENCING THE ACTION
90

91 Civil action commenced by FILING a complaint
92 with the court clerk.
93 Filing date matters for statute of limitations.

94 |
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96 RULE 4 – SUMMONS & SERVICE OF PROCESS

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98 Purpose: Notify defendant of lawsuit and
99 court's authority over them
100

101 Step 1: Clerk issues summons

102 Step 2: Serve summons + complaint on defendant
103

104 Methods of service:

- 105 → Personal delivery
- 106 → Leaving copy at dwelling with person
107 of suitable age and discretion
- 108 → Delivering to authorized agent
- 109 → State law methods
- 110 → Waiver of service (Rule 4(d)) – defendant
111 waives formal service; gets extra time
112 to respond (60 days instead of 21)
113

114 Rule 4(k) – Territorial Limits of Service:

- 115 → Generally: service only valid within
116 the state where district court sits
- 117 → Exceptions: bulge rule (100 miles for
118 third-party defendants and required
119 parties), federal statute authorizes
120 nationwide service, Rule 4(k)(2) for
121 claims arising under federal law
122

123 ⚠ DUE PROCESS REQUIREMENT:

124 Mullane v. Central Hanover Bank:

- 125 → Notice must be "reasonably calculated,
126 under all circumstances, to apprise
127 interested parties of the pendency of
128 the action and afford them an opportunity
129 to present their objections"
- 130 → Known parties: actual notice required
- 131 → Unknown parties: publication may suffice

132 |
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134 RULE 5 – SERVICE AFTER THE COMPLAINT

135

136 All subsequent pleadings and papers served on
137 parties (not the court) – not as demanding as
138 Rule 4 service. Can serve by:
139 → Delivering to party/attorney
140 → Mailing
141 → Electronic means (if consented)
142 |
143 ▼
144 ↓ Complaint filed and served? Proceed to Pleadings

147

149 PHASE 1: PLEADINGS

150

152 PLAINTIFF FILES COMPLAINT (Rule 8(a))

153

154 Must include:

- 155 (1) Jurisdictional allegations – Rule 8(a)(1)
156 (2) Short and plain statement of claim – Rule 8(a)(2)
157 → Must meet Twombly-Iqbal PLAUSIBILITY standard
158 → Two-step: discard conclusions → assess remaining facts
159 → Swanson softening: context matters
160 (3) Demand for relief – Rule 8(a)(3)

162 Form requirements (Rule 10(b)):

- 163 → Numbered paragraphs
164 → One set of circumstances per paragraph
165 → Separate counts for separate claims

167 Special pleading: Rule 9(b) – fraud must be pleaded
168 with particularity (who, what, when, where, how)

170 Attorney signs complaint → Rule 11 certification attaches

171 |
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173 Complaint served on defendant (Rules 3 & 4)

174 |
175 ▼

176 Defendant has 21 DAYS to respond
177 (60 days if timely waiver of service)

178 |
179 └──┘
180 |

OPTION B: FILE ANSWER (Rules 8(b) & (c))

Four components:

- (1) Admissions and denials – Rule 8(b)
- (2) Affirmative defenses – Rule 8(c)
 - Must plead or WAIVED (but can amend under Rule 15)
 - Examples: SOL, res judicata, contributory negligence, estoppel, statute of frauds
- (3) Counterclaims – Rule 13
 - Compulsory (13(a)): same transaction → MUST assert or WAIVED
 - Permissive (13(b)): different transaction → optional
- (4) Crossclaims against co-parties – Rule 13(g)

Attorney signs answer → Rule 11 certification attaches

AMENDING PLEADINGS – Rule 15

Rule 15(a)(1) – As of right (ONE TIME ONLY):

- Within 21 days of serving the pleading, OR
- Within 21 days after responsive pleading or Rule 12(b),(e),(f) motion (whichever earlier)

Rule 15(a)(2) – With permission:

- Need written consent OR court leave
- Standard: "freely given when justice so requires"
- Foman v. Davis factors: undue delay, bad faith, repeated failure to cure, undue prejudice, futility

Rule 15(b) – During/after trial:

- 15(b)(1): Court allows amendment if aids merits and no prejudice
- 15(b)(2): Implied consent – issue tried without objection = treated as if in pleadings

Rule 15(c) – After statute of limitations runs:

- Relation back to original filing date
- 15(c)(1)(A): State law allows it
- 15(c)(1)(B): Same transaction/occurrence (new claim)
- 15(c)(1)(C): New defendant – same transaction + 90-day notice + mistake in identity (Krupski: focus on defendant's knowledge)

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▼

↓ Pleadings settled? Proceed to Joinder

PHASE 1.5: JOINDER & PARTIES

Who else belongs in this lawsuit?

RULE 13 – COUNTERCLAIMS & CROSSCLAIMS (expanded)

Compulsory Counterclaims – Rule 13(a):

- Arises from SAME transaction or occurrence
- MUST assert or it is WAIVED forever
- Exception: claim pending in another action

Permissive Counterclaims – Rule 13(b):

- Any claim NOT from same transaction
- Optional – can bring in separate lawsuit later

Crossclaims – Rule 13(g):

- Against CO-PARTY (same side)
- Must arise from same transaction or occurrence
- Always permissive (never compulsory)

RULE 14 – THIRD-PARTY PRACTICE (Impleader)

WHEN TO USE:

Defendant wants to bring in a NEW party who is or may be liable to defendant for all or part of plaintiff's claim against defendant. ("If I'm liable to plaintiff, then you're liable to me.")

- Defendant becomes "third-party plaintiff"
- New party becomes "third-party defendant"
- Must get leave of court if more than 14 days after serving original answer
- Third-party defendant can assert defenses against original plaintiff
- Classic use: indemnification, contribution

RULE 18 – JOINDER OF CLAIMS

Once you have a proper claim against a party,
you may join ANY and ALL additional claims
against that same party.

- No transaction/occurrence requirement
- No common question requirement
- Unlimited – join as many claims as you have
- Strategic: consolidate everything in one suit

RULE 19 – REQUIRED PARTY JOINDER

Some parties MUST be joined if possible.

Step 1: Is the party NECESSARY (19(a))?

Party is necessary if:

- (a) Complete relief cannot be given without them
- (b) Party has an interest that would be impaired
without joinder
- (c) Existing parties face risk of inconsistent
obligations without the party

Step 2: Can they be joined?

- If YES → must join them
- If NO (e.g., no jurisdiction) → proceed to Step 3

Step 3: Is the party INDISPENSABLE (19(b))?

Factors:

- Prejudice to absent party or existing parties
- Can prejudice be lessened by shaping relief?
- Will judgment be adequate without them?
- Will plaintiff have adequate remedy if dismissed?

If indispensable and cannot be joined → DISMISS

RULE 20 – PERMISSIVE PARTY JOINDER

Multiple plaintiffs OR defendants may be joined if:

- (1) Claims arise from SAME transaction or occurrence
(or series of transactions/occurrences), AND
- (2) There is a COMMON QUESTION of law or fact

- Both requirements must be met
- Court has discretion to sever if joinder would cause prejudice or confusion

RULE 22 – INTERPLEADER

WHEN TO USE:

A party holding property (stakeholder) faces multiple competing claims to that property.
"I have one pot of money. Three people claim it. I don't want to get sued three times. Let the court sort it out."

- Stakeholder deposits property with court
- Claimants fight it out among themselves
- Stakeholder gets out of the middle
- Also available under 28 U.S.C. § 1335 (statutory interpleader – lower amount requirement, nationwide service)

RULE 23 – CLASS ACTIONS

WHEN TO USE:

Large group of people with similar claims.
Too many to join individually under Rule 20.

PREREQUISITES – ALL four must be met (23(a)):

- (1) NUMEROSITY – class so large that joinder is impracticable (usually 40+ members)
- (2) COMMONALITY – common questions of law or fact
 - Wal-Mart v. Dukes: must show common ANSWERS that drive the litigation, not just common questions
- (3) TYPICALITY – named plaintiff's claims typical of the class
- (4) ADEQUACY – named plaintiff and counsel will fairly and adequately protect interests of the class

THEN must fit one of three 23(b) types:

- 23(b)(1) – Risk of inconsistent adjudications or impairment of absent members

23(b)(2) – Defendant acted/refused to act on
grounds generally applicable to class
(injunctive/declaratory relief)
23(b)(3) – Common questions PREDOMINATE and
class action is SUPERIOR to other
methods (most common – damages class)

⚠ DUE PROCESS LIMIT:

Hansberry v. Lee:

- Absent class members can only be bound by judgment if they were ADEQUATELY REPRESENTED
- Cannot bind absent parties without due process
- Named plaintiff must truly represent the class

RULE 24 – INTERVENTION

Non-party wants to JOIN an existing lawsuit.

Intervention of RIGHT – Rule 24(a):

Must allow if:

- Statute gives unconditional right, OR
- Applicant claims an interest in the subject matter AND disposition may impair that interest AND existing parties do not adequately represent the interest
- Must be timely

Permissive Intervention – Rule 24(b):

Court MAY allow if:

- Statute gives conditional right, OR
- Applicant's claim/defense shares common question of law or fact with main action
- Court considers delay and prejudice

|



↓ Parties sorted out? Proceed to Discovery

PHASE 2: DISCOVERY

RULE 26(f) – MEET AND CONFER

451
452 At least 21 days before Rule 16(b) scheduling conference
453 Parties discuss: discovery plan, ESI, privilege issues

454 |

455 ▼

456 RULE 16(b) – SCHEDULING ORDER

457
458 Issued within 90 days after any defendant served
459 OR 60 days after any defendant appeared
460 Sets deadlines for all discovery and motions
461 Can only modify for GOOD CAUSE

462 |

463 ▼

464 RULE 26(a)(1) – MANDATORY INITIAL DISCLOSURES

465
466 Due within 14 days after Rule 26(f) conference
467 WITHOUT awaiting a request – must disclose:
468 (i) Witnesses with discoverable information
469 (ii) Documents/ESI supporting claims or defenses
470 (iii) Damages computation + supporting documents
471 (iv) Insurance agreements

472 |

473 ▼

474 PARTY-DRIVEN DISCOVERY (Rules 30-36)

475
476 Tools available:

477
478 Rule 33 – Interrogatories
479 → Parties only | 25 max | 30 days to respond
480 → Answers under oath | Objections by attorney
481
482 Rule 34 – Document Requests
483 → Parties only | No numerical limit | 30 days to respond
484 → Reasonable particularity required
485 → No boilerplate objections
486 → Must state what's being withheld
487

488 Rule 30 – Depositions
489 → Parties AND nonparties (subpoena for nonparties)
490 → 10 depositions max | 1 day / 7 hours limit
491 → No judge present – objections on record
492 → Only refuse to answer for: privilege, court order,
493 motion to terminate
494

495 Rule 35 – Physical/Mental Examinations

496 → Parties only | Requires court order
497 → Must show: condition in controversy + good cause
498
499 Rule 36 – Requests for Admissions
500 → Parties only | 30 days to respond
501 → Deemed admitted if no response → CONCLUSIVELY established
502
503 ⚠ DISCOVERABILITY TEST – Rule 26(b)(1):
504 (1) Nonprivileged?
505 (2) Relevant to any claim or defense?
506 (3) Proportional to the needs of the case?
507 ALL YES → DISCOVERABLE (even if inadmissible at trial)
508
509 ⚠ ADDITIONAL STOPS TO DISCOVERY:
510 → Cumulative/duplicative – Rule 26(b)(2)(C)
511 → Non-testifying expert limits – Rule 26(b)(4)
512 → Protective orders – Rule 26(c)
513 → Work product – Rule 26(b)(3) (Hickman v. Taylor)
514
515 Rule 26(a)(2) – EXPERT DISCLOSURES
516 → Due at least 90 days before trial
517 → Written reports required for retained experts
518 → Rebuttal: within 30 days after other party's disclosure
519
520 Rule 26(e) – DUTY TO SUPPLEMENT
521 → Must supplement if response becomes incomplete/incorrect
522
523 Rule 26(g) – CERTIFICATION ("Discovery's Rule 11")
524 → Must sign all discovery papers
525 → Certifies: consistent with rules, not for improper
526 purpose, not unreasonably burdensome
527 → Violation → MANDATORY sanctions
528
529 DISCOVERY ENFORCEMENT:
530 → Rule 37(a): Motion to compel
531 → Rule 37(c)(1): Failure to disclose → automatic exclusion
532 → Rule 37(e): ESI spoliation → curative measures
533 or case-dispositive sanctions
534 → Litigation holds (Zubulake): implement when litigation
535 reasonably anticipated
536 |
537 ▼
538 Rule 26(a)(3) – PRETRIAL DISCLOSURES
539 → Due at least 30 days before trial
540 → Witness lists, exhibit lists

541 |
542 ▼
543 ↓ Discovery complete? Proceed to Pretrial
544
545

546
547

548 PHASE 3: PRETRIAL CASE MANAGEMENT

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550
551 RULE 16 – PRETRIAL CONFERENCES

552
553 Rule 16(c): Attorneys must attend with authority to act
554 → Can discuss settlement ≠ obligation to agree
555 → Seven categories: narrow issues, manage discovery,
556 resolve legal issues, trial prep, settlement/ADR,
557 special management, catch-all
558

559 Rule 16(d): Pretrial orders control the action
560

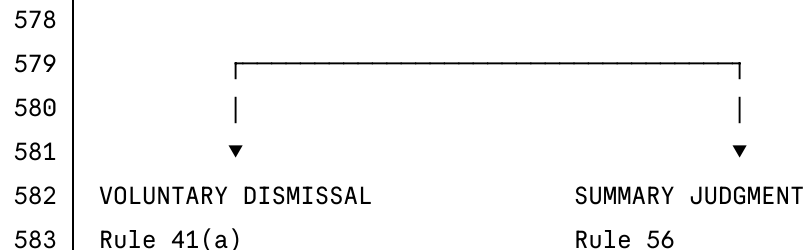
561 Rule 16(e): FINAL PRETRIAL ORDER
562 → Supersedes the pleadings
563 → If it's not in here → excluded from trial
564 → Modify only for MANIFEST INJUSTICE (very high bar)
565 → Davey v. Lockheed: four-factor test for modification
566

567 Rule 16(f): Sanctions for failure to appear,
568 unpreparedness, disobedience

569 |
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571 ↓ Can the case be resolved without trial?
572
573

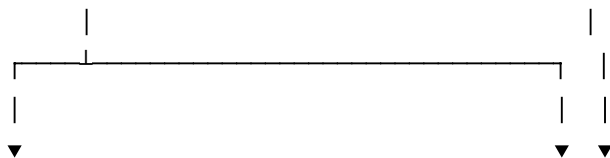
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576 PHASE 4: RESOLUTION WITHOUT TRIAL



585 WHEN TO USE: WHEN TO USE:

586	Plaintiff wants out –	After discovery closes,
587	case is weaker than	before trial. Arguing:
588	thought, want to	"Facts are undisputed.
589	refile elsewhere,	Just apply the law.
590	or informal settlement.	We don't need a trial."
591		
592	First dismissal:	Standard: No genuine dispute
593	WITHOUT prejudice	as to material fact AND
594	(by right – can refile)	movant entitled to judgment
595		as a matter of law
596	Second dismissal on	
597	SAME claim:	Movant must:
598	WITH prejudice	→ Support with record evidence
599	("two dismissal rule")	→ OR show opponent cannot
600	→ CASE OVER, cannot refile	produce admissible evidence
601		
602	INVOLUNTARY DISMISSAL	Burden shifts:
603	Rule 41(b):	→ Movant shows no genuine issue
604	Defendant moves to	→ Non-movant must show
605	dismiss – plaintiff	specific facts in dispute
606	failing to prosecute	
607	or violating orders.	Court views facts in light
608	→ Treated as judgment	most favorable to non-movant
609	ON THE MERITS	
610	(cannot refile)	



621 PHASE 5: TRIAL

624 SEVENTH AMENDMENT – JURY TRIAL RIGHT

626 Applies to "suits at common law" (federal only)

627 Money damages → jury trial right

628 Equitable relief → judge decides

629 Must request jury trial (waivable) – Rule 38

631 Dairy Queen v. Wood:
632 → Labels don't control – substance matters
633 → Contract debt claim is legal regardless of
634 how it's pleaded as equitable
635

636 Beacon Theatres v. Westover:
637 → When legal AND equitable claims overlap,
638 jury right must be PRESERVED
639 → Jury decides legal issues FIRST
640 → Judge is bound by jury's findings on
641 common factual issues
642 → Cannot use equitable framing to deny jury
643 trial on legal claims

644 |

645 ▼

646 RULE 38 – JURY TRIAL DEMAND

647
648 → Must demand jury trial in writing
649 → No later than 14 days after last pleading
650 directed to the issue
651 → WAIVED if not timely demanded
652 → Once made, cannot be withdrawn without
653 consent of all parties

654 |

655 ▼

656 JURY SELECTION & VOIR DIRE – Rule 47

657
658 → Court examines prospective jurors OR
659 permits parties/attorneys to do so
660 → Challenges for cause: unlimited
661 (bias, relationship, inability to be fair)
662 → Peremptory challenges: limited number
663 (no reason required, but cannot use
664 race or gender – Batson v. Kentucky)

665 |

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667 TRIAL BEGINS – Opening statements, evidence,
668 witnesses, cross-examination

669 |

670 ▼

671 RULE 50(a) – JUDGMENT AS A MATTER OF LAW (JMOL)

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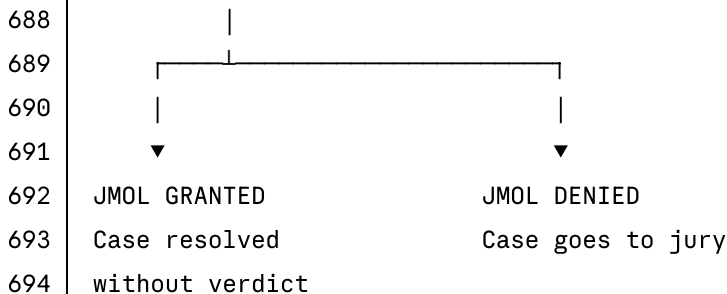
673 WHEN TO USE:

674 Other side has just finished presenting evidence.

675 You argue: "Even viewing all their evidence in the

676 light most favorable to them, no rational jury
677 could find for them. End the case now."
678
679 Can move ANY TIME before case goes to jury
680 (after opposing party fully heard on an issue)
681 Standard: Rational factfinder COULD NOT find for
682 the party on the evidence presented
683 Court: draws all inferences for non-movant;
684 does NOT weigh evidence or assess credibility
685

686 ⚠ CRITICAL: Must file 50(a) during trial or you
687 LOSE the right to file 50(b) after the verdict!



695

696 ▼

697 RULE 51 – JURY INSTRUCTIONS

- 698
-
- 699 → Parties may file requests for instructions
- 700 → Court instructs jury on applicable law
- 701 → Must object to instructions before jury
- 702 retires or objection is WAIVED
- 703 → Improper instructions = grounds for new trial

704

705 ▼

706 RULE 49 – SPECIAL VERDICTS & INTERROGATORIES

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-
- 708 49(a) Special verdict: jury answers specific
- 709 factual questions; judge applies law
- 710 49(b) General verdict + interrogatories:
- 711 jury returns general verdict AND
- 712 answers specific questions
- 713 → Inconsistent answers → court may:
- 714 (a) Return jury for further deliberation
- 715 (b) Enter judgment consistent with answers
- 716 (c) Order new trial

717

718 ▼

719 JURY DELIBERATES & RETURNS VERDICT

720

721

▼
↓ Proceed to Post-Trial

PHASE 6: POST-TRIAL MOTIONS

FOUR POST-TRIAL OPTIONS:

▼	▼	▼	▼
RULE 50(b)	RULE 59	RULE 60	REMITTITUR/
RENEWED JMOL	NEW TRIAL	RELIEF FROM	ADDITUR
		JUDGMENT	
WHEN TO USE:	WHEN TO USE:	WHEN TO USE:	REMITTITUR:
Jury came	Something	Exceptional	Court reduces
back wrong.	went wrong	circumstances	excessive
"Evidence	during the	after	damages.
was so one-	trial.	judgment	Constitutional
sided, jury	"We need to	is entered.	✓ ALLOWED
shouldn't	do it over."		
have ruled			
that way."	Grounds:	Grounds:	ADDITUR:
	→ Verdict	Mistake,	Court increases
Must file	against	newly	inadequate
within 28	weight of	discovered	damages.
days of	evidence	evidence,	Unconstitutional
judgment	→ Legal	fraud,	per 7th
	errors	void	Amendment ✗
Must mirror	→ Bad jury	judgment	NOT ALLOWED
prior 50(a)	instructions		
motion	→ Juror	Different	
	misconduct	from 50(b)	
⚠ CANNOT	→ Newly	– about	
file 50(b)	discovered	getting	
without	evidence	relief from	
prior 50(a)!	→ Grossly	the judgment	
	excessive	itself, not	
	damages	the verdict	

KEY DISTINCTION:

Rule 50(b) = "Jury got it wrong – rule for me instead"

766 Rule 59 = "Something went wrong – redo the trial"

767

768 RULE 50(c) – COMBINED MOTION:

- 769 → Can file 50(b) JMOL + conditional Rule 59
770 new trial motion together
771 → If appeals court reverses 50(b) grant,
772 can reinstate jury verdict OR order new trial
773 → Efficient – preserves both options

774

775 RULE 61 – HARMLESS ERROR:

- 776 → Not every error at trial requires a new trial
777 → Error must affect a party's "substantial rights"
778 → Court must disregard errors that do not affect
779 the outcome
780 → "No harm, no foul" – only prejudicial error
781 requires remedy

782

783 FRE 606(b) – JUROR IMPEACHMENT RULE:

- 784 → General rule: jurors CANNOT testify about
785 what occurred during deliberations
786 → Cannot impeach a verdict based on:
787 - How jury voted
788 - Arguments made during deliberations
789 - Mental processes of jurors
790 → EXCEPTIONS – juror testimony IS allowed for:
791 (1) Extraneous prejudicial information
792 brought into deliberations
793 (2) Outside improper influence on juror
794 (3) Clerical error in entering verdict
795 |
796 ▼
797 ↓ Still not resolved? Proceed to Appeal

798

799

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802 PHASE 7: APPEAL

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805 FINAL JUDGMENT RULE – 28 U.S.C. § 1291

806

- 807 Generally only FINAL judgments are appealable
808 → Final judgment resolves ALL claims of ALL parties
809
810 Notice of appeal: Must file within 30 days

after entry of judgment

EXCEPTIONS TO FINALITY:

- Interlocutory appeals – 28 U.S.C. § 1292
(injunctions, collateral order doctrine,
permissive interlocutory appeal)
- Writ of mandamus

STANDARDS OF APPELLATE REVIEW:

- Legal conclusions: DE NOVO
- Factual findings: CLEAR ERROR
- Jury verdicts: SUBSTANTIAL EVIDENCE
- Discretionary rulings: ABUSE OF DISCRETION

Appellate court options:

- Affirm | Reverse | Remand | Modify
- |
- ▼
- ↓ Case truly over? Or can it be re-litigated?

PHASE 8: CLAIM & ISSUE PRECLUSION

CLAIM PRECLUSION (Res Judicata)

"A final judgment on the merits bars a party
from suing again on the SAME claim"

Three requirements:

- (1) Final judgment on the merits
- (2) Same claim – Transactional Test:
same transaction or series of connected
transactions
- (3) Same parties (or their privies)

Effect: Bars re-litigation of claims that WERE
or COULD HAVE BEEN litigated

EXCEPTIONS to claim preclusion:

- Court lacked subject matter jurisdiction
- Judgment was obtained by fraud
- Parties agreed the judgment would not

have preclusive effect

- Plaintiff could not have brought the claim in the first forum (jurisdictional limits)

ISSUE PRECLUSION (Collateral Estoppel)

"Once a court decides an issue necessary to its judgment, that decision precludes re-litigation of that issue in a subsequent action"

Five requirements:

- (1) Same issue of fact or law
- (2) Actually litigated and decided
- (3) Necessary to the judgment
- (4) Final judgment on the merits
- (5) Party against whom preclusion is sought was a party (or privy) to the prior action

Effect: Bars re-litigation of the specific ISSUE (not the entire claim)

NON-MUTUAL COLLATERAL ESTOPPEL:

Traditional rule required mutuality – only parties to the first suit could use preclusion. Modern rule relaxed this:

DEFENSIVE non-mutual collateral estoppel:

- New defendant uses prior judgment AGAINST plaintiff
- "You lost on this issue before, you can't relitigate it against me"
- *Blonder-Tongue Laboratories v. University of Illinois Foundation* – ALLOWED
- Policy: prevents plaintiff from getting multiple bites at the apple

OFFENSIVE non-mutual collateral estoppel:

- New plaintiff uses prior judgment AGAINST defendant
- "You lost on this issue before, I can use that against you now"
- *Parklane Hosiery Co. v. Shore* – allowed but courts have DISCRETION to reject it
- Factors: could plaintiff have joined first suit? Did defendant have incentive to litigate fully?

Inconsistent prior judgments?

NON-PARTY PRECLUSION – Privity Categories:

- Preclusion can bind non-parties who are in "privity" with a party:
 - (1) Successors in interest (property, business)
 - (2) Persons represented by a party (trustee/beneficiary, guardian/ward)
 - (3) Persons who controlled prior litigation
 - (4) Persons who had opportunity to join and chose not
 - (5) Class members in certified class actions (Hansberry v. Lee: adequate representation required)

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▼

↓ Judgment final and preclusive? OR Proceed to Enforcement

PHASE 9: ENFORCEMENT OF JUDGMENT

Winning a judgment is not the same as collecting it.

RULE 69 – EXECUTION OF MONEY JUDGMENTS

WHEN TO USE:

You won a money judgment and the other side won't pay. Now you need to collect.

- Writ of execution: court orders seizure and sale of defendant's property
- Garnishment: intercept wages, bank accounts
- Procedure governed by state law of the district where court is located
- Must follow state exemptions (homestead, retirement accounts, etc.)
- Can register judgment in other districts under 28 U.S.C. § 1963 to collect there

RULE 70 – ENFORCING JUDGMENTS FOR SPECIFIC ACTS

WHEN TO USE:

946 You won a judgment requiring the other side to
947 DO something (not just pay money) – deliver
948 property, execute a deed, perform an act –
949 and they refuse.
950
951 → Court can: direct act to be done at losing
952 party's expense, hold party in contempt,
953 or vest title/property directly by court order
954 → Court's order itself can serve as a deed
955 or transfer of title (no cooperation needed)
956 → Contempt power available for noncompliance
957
958

959

960

961 STRATEGIC SEQUENCE – RULES 41, 56, 50, 59 AT A GLANCE:
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963

964 QUESTION: "Can we end this case early or cheaply?"
965

966 Before/during pleadings:
967 → Rule 41(a): Plaintiff voluntarily dismisses
968 (1st time = without prejudice; 2nd = with)
969 → Rule 41(b): Defendant moves to dismiss for
970 failure to prosecute → on the merits

971 |
972 ▼

973 After discovery closes:
974 → Rule 56: Summary Judgment
975 "Facts undisputed. Law is clear. No trial needed."
976 |
977 ▼ (if denied – trial begins)

978 After opposing party presents evidence:
979 → Rule 50(a): JMOL during trial
980 "No rational jury could find for them. End it now."
981 ⚠ MUST FILE THIS or lose right to 50(b)!
982 |
983 ▼ (if denied – jury deliberates)

984 After jury verdict:
985 → Rule 50(b): Renewed JMOL – filed within 28 days
986 "Jury got it wrong – rule for me instead"
987 Must mirror prior 50(a) motion
988 AND/OR
989 → Rule 59: New Trial
990 "Something went wrong – we need to redo this"

991 Verdict against weight of evidence, legal errors,
992 juror misconduct, excessive damages
993 → Rule 50(c): File both together – preserves options
994
995
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997

998 THE COMPLETE PICTURE – ONE LINE:
999
1000

1001 Pre-Filing (jurisdiction/venue) → Filing & Service (Rules 3,4,5)
1002 → Complaint → Defendant Responds → Joinder & Parties →
1003 Rule 26(f) Meet & Confer → Rule 16(b) Scheduling Order →
1004 Initial Disclosures → Party-Driven Discovery → Expert Disclosures
1005 → Pretrial Disclosures → Rule 16 Pretrial Conferences →
1006 Final Pretrial Order → Summary Judgment (maybe) →
1007 Trial (jury demand, voir dire, 50(a), instructions, verdict) →
1008 Post-Trial Motions (50(b), 59, 60, remittitur) →
1009 Appeal → Preclusion → Enforcement
1010
1011
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1014 KEY RULES & STATUTES AT A GLANCE:
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1016

1017 JURISDICTION & VENUE

1018 28 U.S.C. § 1331 – Federal question jurisdiction
1019 28 U.S.C. § 1332 – Diversity jurisdiction (\$75K+,
1020 complete diversity)
1021 28 U.S.C. § 1367 – Supplemental jurisdiction
1022 28 U.S.C. § 1391 – Venue
1023 Erie Railroad – Federal courts in diversity apply
1024 state substantive law
1025 International Shoe – Minimum contacts for personal
1026 jurisdiction
1027 World-Wide VW – Purposeful availment required
1028

1029 FILING & SERVICE

1030 Rule 3 – Filing commences the action
1031 Rule 4 – Summons, service methods,
1032 waiver, territorial limits
1033 Rule 5 – Service of subsequent papers
1034 Mullane – Due process: notice reasonably
1035 calculated to inform

1036		
1037	PLEADINGS	
1038	Rule 8(a)	- Complaint requirements
1039	Rule 9(b)	- Heightened pleading for fraud
1040	Rule 10(b)	- Form of pleadings
1041	Rule 11	- Signature + certification (ethics)
1042	Rule 12(b)	- Pre-answer motions / defenses
1043	Rule 12(g)	- Omnibus motion rule (waiver trap)
1044	Rule 12(h)	- What survives the waiver trap
1045	Rule 15	- Amendments to pleadings
1046	Twombly/Iqbal	- Plausibility pleading standard
1047	Foman v. Davis	- Leave to amend freely given
1048	Krupski	- Relation back mistake inquiry
1049		
1050	JOINDER & PARTIES	
1051	Rule 13	- Counterclaims and crossclaims
1052	Rule 14	- Impleader / third-party practice
1053	Rule 18	- Joinder of claims (unlimited)
1054	Rule 19	- Required party joinder
1055	Rule 20	- Permissive party joinder
1056	Rule 22	- Interpleader
1057	Rule 23	- Class actions
1058	Rule 24	- Intervention
1059	Hansberry v. Lee	- Due process limits on class actions
1060	Wal-Mart v. Dukes	- Commonality requires common answers
1061		
1062	DISCOVERY	
1063	Rule 26	- Scope and limits of discovery
1064	Rule 30	- Depositions
1065	Rule 33	- Interrogatories
1066	Rule 34	- Document requests
1067	Rule 35	- Physical/mental examinations
1068	Rule 36	- Requests for admissions
1069	Rule 37	- Discovery sanctions
1070	Rule 16	- Pretrial case management
1071	Hickman v. Taylor	- Work product doctrine
1072		
1073	RESOLUTION WITHOUT TRIAL	
1074	Rule 41	- Dismissal (voluntary/involuntary)
1075	Rule 55	- Default judgment
1076	Rule 56	- Summary judgment
1077		
1078	TRIAL	
1079	Rule 38	- Jury trial demand (waived if not made)
1080	Rule 47	- Voir dire / jury selection

1081	Rule 49	- Special verdicts
1082	Rule 50(a)	- JMOL during trial (before jury)
1083	Rule 51	- Jury instructions
1084	Dairy Queen	- Labels don't control jury rights
1085	Beacon Theatres	- Preserve jury right when legal/
1086		equitable claims overlap
1087		
1088	POST-TRIAL	
1089	Rule 50(b)	- Renewed JMOL after verdict
1090		(28 days; requires prior 50(a)!)
1091	Rule 50(c)	- Combined JMOL + new trial motion
1092	Rule 59	- New trial
1093	Rule 60	- Relief from judgment
1094	Rule 61	- Harmless error
1095	FRE 606(b)	- Juror impeachment rule
1096	Remittitur	- Court reduces damages (allowed)
1097	Additur	- Court increases damages
1098		(unconstitutional - 7th Amendment)
1099		
1100	APPEAL	
1101	28 U.S.C. § 1291	- Final judgment / appealability
1102		
1103	PRECLUSION	
1104	Blonder-Tongue	- Defensive non-mutual collateral
1105		estoppel allowed
1106	Parklane Hosiery	- Offensive non-mutual collateral
1107		estoppel allowed (court discretion)
1108	Hansberry v. Lee	- Adequate representation for
1109		non-party preclusion
1110		
1111	ENFORCEMENT	
1112	Rule 69	- Execution of money judgments
1113	Rule 70	- Enforcing judgments for specific acts
1114		